

if a testator die possessed of live stock which cannot be kept but at a great expense, the executors ought to sell forthwith (*f*). So executors would not be justified in continuing the testator's housekeeping expenses for an unreasonable time, but when they have acquainted themselves with the facts, should discharge the servants and break up the establishment; and an interval of two months was in one case, but under rather special circumstances, held to be justifiable (*g*). A testator died possessed of Crystal Palace shares, and it was contended that the executors were to be responsible for the value at the end of two months, but the Court held that they had a discretion whether to sell or not until the end of twelve months (*h*).

Buxton v. Buxton. — Where a great part of the assets was outstanding on *Mexican bonds*, and the executors sold in the course of the *second year* from the testator's decease, Lord Cottenham held that, if the executors were bound *at once* to convert the assets without considering how far it was for the interest of the persons beneficially entitled, there would of necessity be always an immediate sale, and often at a great sacrifice of property; that executors were entitled [*289] to exercise * a *reasonable discretion* according to the circumstances of the particular case. The will had directed the trustees to convert "with all convenient speed," but this, observed his Lordship, was the ordinary duty implied in the office of every executor (*a*). [So where a testator bequeathed his personal estate to his executors upon trust to divide the same equally among four persons, all of whom were of age, and the estate comprised foreign railway bonds which the executors retained beyond the end of the first year from the testator's death, it was held by the Court of Appeals affirming the decision of V. C. Hall, that as the executors acted with a view to what they thought beneficial to everybody interested, and in the exercise of their discretion thought it more prudent to wait, they ought not to suf-

(*f*) *Ib.*(*h*) *Hughes v. Empson*, 22 Beav.(*g*) *Field v. Peckett* (No. 2), 29 181.
Beav. 576.(*a*) *Buxton v. Buxton*, 1 M. & Cr.
80.